

25NWLC76950 25NWLC76950

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-07-30

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Case Number: 25NWLC76950 Hearing Date: July 30, 2026 Dept: Y

25NWLC76950: WELLS FARGO BANK, N.A. vs RUDY ESPINOZA

Tentative Ruling:

The Court has read and reviewed all moving documents filed by Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") in support of its motion for summary judgment, including the separate statement and supporting evidence.

Plaintiff's motion for summary judgment was filed on April 23, 2026 and set for hearing on July 30, 2026. No opposition has been filed by Defendant Miryam Martinez ("Defendant").

The Court finds that Plaintiff has met the initial burden of showing that there are no defenses to the causes of action for (1) breach of written contract; and (2) breach of contract (implied in fact), by proving each element of the cause of actions entitling Plaintiff to summary judgment.

Plaintiff has shown with admissible evidence that Defendant was issued the subject credit card by Plaintiff, Defendant was the only person who authorized charges to be made on the account, Defendant sent monthly statements for the subject account, and that there is no record of any unresolved disputes on the account. (Plaintiff's Separate Statement, Undisputed Material Facts Nos. [UMF] 1-10, 15-24.) The evidence also shows that Defendant's last payment on the subject account was on February 4, 2024 and that Defendant owes Plaintiff the unpaid balance on the credit account of \$6,159.81. (Id., UMF Nos. 11-14, 25-28.)

The burden having shifted to Defendant, the Court finds Defendant has failed to set forth specific facts showing that a triable issue of material fact exists as to any of the elements of the causes of action for breach of contract or that there is any defense thereto required by Code of Civil Procedure section 437c(p)(1).

The Court finds that Plaintiff is entitled to judgment as a matter of law and GRANTS Plaintiff's Motion for Summary Judgment as to its causes of action for breach of contract.

Judgment is hereby entered in favor of Plaintiff Wells Fargo Bank, N.A. and against Defendant Miryam Martinez in the principal sum of \$6,159.81, plus costs of \$815.00 for a total judgment of \$6,974.81.

The Proposed Order and Judgment will be signed by the Court.

Plaintiff to give notice.